

Law of Equity and Trusts (EQT1)

Module 6: Breach, Tracing and Remedies

Lesson 3: Course Integration and Exam Technique

Lesson Notes

KMVTECHUG

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How the Modules Fit Together

Modules 1–2: foundations, maxims, concurrent administration, and equitable remedies. Modules 3–4: creation and classification of trusts. Modules 5–6: trusteeship, breach, tracing and remedies. Together they form a complete analytical framework.

Key Statutes (7th Revised Edition)

- Judicature Act Cap 16 — concurrent administration; equity prevails.
- Trustees Act Cap 270 — trustees' appointment, powers, duties, relief.
- Registration of Titles Act Cap 240 — registered title and equitable interests.
- Succession Act Cap 268 — testamentary context.
- Constitution Art. 126(2)(e) — substance over form.

Exam Approach

Identify parties and property → is there a trust or equitable interest? → any breach? → personal and proprietary remedies → third-party liability → defences → apply Ugandan statutes and registration rules. Avoid outdated Cap numbers and do not confuse resulting with constructive trusts.

Key idea: Structure every answer: relationship → breach → remedy. Use current Caps.

Quick Revision Checklist

- ☐ I can map each module to the overall framework.
- ☐ I know the core Cap numbers from the 7th Revised Edition.
- ☐ I can outline a structured problem-question method.
- ☐ I avoid the common pitfalls (outdated Caps, confused trust types).
- ☐ I am ready for the Module 6 graded quiz and course completion.

Course Completion

You have completed EQT1 – Law of Equity and Trusts. Review weaker modules, practise past papers, and keep up with Ugandan case law applying these principles.